

FOSTER v IRBC 2 PROPERTIES, LLC

21CV45573

**DEFENDANTS' MOTIONS FOR SUMMARY
JUDGMENT/SUMMARY ADJUDICATION**

The Court notes that plaintiff has filed a Motion for Leave to File a Third Amended complaint, scheduled for 8/14/26 at 9:00 a.m. in Department 2. The Court finds that these MSJs and the motion for leave may impact on each other and therefore the motion for leave needs to be fully responded to for consideration of all motions at the same time.

Accordingly, **all motions for summary judgment are continued to August 14, 2026, at 9:00 a.m. in Department 2.** The Court will be addressing all pending motions in the tentative ruling posted pursuant to Local Rule 3.3.7 for that calendar.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

FORD v GREENHORN GOLF, LLC

23CV47102

PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION/AND FOR PERMANENT INJUNCTION

On December 6, 2023, Patricia Ford (“Plaintiff”) filed a Complaint against Greenhorn Golf, LLC (“Defendant”)¹ seeking damages for nuisance and requesting injunctive relief. On September 16, 2024, the Court granted a preliminary injunction in favor of Plaintiff.

Now before the Court is Plaintiff’s motion for summary judgment.

I. Factual Background

Plaintiff is the owner of property located at 138 Smith Flat Road, Angels Camp, California (“Property”) (UMF 1.) Plaintiff lives and resides on the Property. (UMF 2.) The Property is located within the master planned community commonly known as Greenhorn Creek. (UMF 3.) Prior to June 15, 2026, Defendant owned and operated the golf course and certain common areas in the neighborhood. (UMF 4.)

On June 15, 2026, Greenhorn conveyed APN 058-060-006-000 (“Lot M”) and other parcels to SGM, Inc. by Grant Deed as part of an asset sale of the Greenhorn Creek Golf Course operation. (Defendant’s UMF 1.) Lot M is the parcel on which the 18 trees at issue in this action were formerly located and from which the alleged root encroachment originated. (*Ibid.*) Plaintiff does not dispute the transfer of ownership but asserts that such transfer does not negate her claims against Defendant.

Lot M is an unimproved wooded lot containing a pond and several trees. (UMF 6.) At the start of this lawsuit, there were eighteen trees at issue – Plaintiff alleges that prior the removal of the 18 trees, the roots from Lot M encroached on Plaintiff’s property. (UMF 8.) Plaintiff asserts that the encroachment caused damage to her yard, sprinkler system, garden, and concrete. (UMF 9-12.) Defendant disputes this assessment. (UMF 8-12.)

¹ Plaintiff has also sued Does 1-10.